

SENATE BILL NO. 433

INTRODUCED BY T. MANZELLA

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING RIGHT-OF-WAY LAWS REGARDING
ROUNDBABOUTS; PROVIDING DEFINITIONS; AND AMENDING SECTION 61-8-327, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Rotary traffic islands and roundabouts -- definitions. (1) A vehicle
passing around a rotary traffic island or a roundabout:

(a) may be driven only to the right of the island or to the right of the center of the roundabout; and

(b) has right-of-way over all vehicles approaching the island or roundabout.

(2) (a) A vehicle approaching a rotary traffic island or a roundabout must yield the right-of-way to
all vehicles passing around the island or roundabout.

(b) A vehicle approaching a roundabout may not enter the roundabout in a manner that interferes
with the travel of a towing vehicle simultaneously entering the roundabout.

(3) (a) If the approach to a rotary traffic island or roundabout has multiple lanes of traffic for travel
in the same direction, a towing vehicle may, with due regard for all other traffic and when employing a turn
signal or hazard signal, deviate from its lane in order to safely approach or pass around the island or
roundabout. Vehicles travelling in the same direction as the hauling vehicle must yield the right-of-way and may
not attempt to pass.

(b) If a towing vehicle is poised to enter a roundabout simultaneously with a second towing vehicle,
the vehicle to the left has the right-of-way and the vehicle to the right shall yield.

(4) As used in this section, the following definitions apply:

(a) "Roundabout" means a circular intersection.

(b) "Towing vehicle" means a vehicle that is towing one or more vehicles.

Section 2. Section 61-8-327, MCA, is amended to read:

"61-8-327. One-way roadways, rotary traffic islands, and roundabouts. (1) The department of transportation or a local authority may designate a highway, roadway, part of a roadway, or specific lanes under its respective jurisdiction for one-way traffic and shall erect official traffic control devices giving notice of that designation.

(2) ~~Upon~~On a roadway designated by official traffic control devices for one-way traffic, a vehicle may be driven only in the direction designated.

~~(3) A vehicle passing around a rotary traffic island or a roundabout may be driven only to the right of the island or the center of the roundabout.~~

(4) — For the purposes of this section, a "roundabout" is a circular intersection where all entering traffic must yield to the vehicles within the intersection."

NEW SECTION. **Section 3. Codification instruction.** [Section 1] is intended to be codified as an integral part of Title 61, chapter 8, part 3, and the provisions of Title 61, chapter 8, part 3, apply to [section 1].

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